Noesis documents: items waiting for a decision or a drafter

From a read of Documents 2 and 4 to 10 (drafts dated 8 Nov 2026). The review notes already in the documents are not repeated at length. **Documents 1 and 3 in the 8 Nov set were not in the shared folder, so nothing is said about them: please resend.** Company numbers in the documents were accepted as given. Cuan has not verified the statutory citations.

A. For Shane to decide

1. **IP price and route:** the "[EUR 10.00: not approved by Shane]" bracket (Docs 2, 7, 9, 10) and whether the Step 2 then Step 3 route stays once the tax team reports.
2. **Title line "Statutory Instrument 07 to 10"** (Docs 7 to 10): keep, or "Deed 07" and so on.
3. **Class structure:** the family class ("Class F / Class B"), Class B voting (Docs 3, 4, 6 differ), the Class C pool, source and mechanism for Years 2 and 3, and the 86/8/6 against 83/17 question.
4. **Hudner's terms** (10% non-voting Class B in Asterial): transfer rules, adherence at Step 2, his block in Doc 6.
5. **Founder warranties in Doc 9:** personal, uncapped, no knowledge qualifier, open for 12 years. Cap, time limit, "so far as aware".
6. **Sandbox separation test:** field of use (agreed) against the "separate hardware" wording still in Docs 2, 5, 6, 7.
7. **Ring 1 "never licensed" wording:** state the Asterial Acquisition exception everywhere or nowhere (Docs 8 and 9 have it; 2, 5, 6, 7, 10 do not).
8. **Doc 10 Rider (8 paragraphs):** whether it stays, how it ranks against Documents 3, 4 and 6, and who holds the extension and default-buyer roles.
9. **Arbitrator and appointing body** (Doc 5 cl 7.1; Doc 6 cl 12).
10. **Succession:** the bracketed family class and "[sixty (60)]" days in Doc 4 Art 6.1(d).

B. For Pat to draft or advise

- **Voting floor (Docs 3, 4, 6):** a per-share formula giving Class A 75.5% (Art 5.2(a) has none; Art 11(b)'s "three times" gives 75%); delete s146(1) from Art 4; drop the Class B designation-by-letter power or use a separate class.
- **Good Leaver:** define it, give vested shares a price and a valuer; align the confidentiality-breach price (EUR 0.01 in Art 12(b) against 75% in Art 6.4); fix the circular references in Doc 6 cl 1(b) and 7(d) and the missing "Article 6.3(a)" covenants; fund the 24-month buyback note lawfully.
- **Doc 6 gaps:** vesting mechanics, "Year 1 deliverables", confidentiality, executive restrictive covenants, pre-emption, NOESIS-level drag and tag, term and termination, one Change of Control definition, one competitor definition and one look-through percentage (25% against "more than 25%").
- **Doc 8:** payment, term, termination, confidentiality, GDPR Article 28; the 36-month service level as a schedule; a field of use for SanCelvio and Velocity; the liability cap carve-outs; and who "the Class A Shareholder" is in 3.1(a).
- **Adherence:** one set of adherence forms binding Documents 5 to 10, a form for the Designated R&D Subsidiary, and "becomes bound upon executing" (not "automatically upon incorporation").
- **Parent-subsidiary position:** a step or covenant moving Zubelsala, SanCelvio and Velocity under NOESIS, or seal blocks for the three in Doc 10; sign Doc 10 at Step 1.
- **Authorised capital** in Doc 4; replace the subscriber and seal pages with an adoption certificate for public filing; strip all notes, brackets and the draft tag.
- **Fix the clauses the notes flag:** Doc 4 Art 9.3 (a constitution cannot bind subsidiary deals), Art 12(c) and (d); Doc 5 1.3 "directs" wording; Doc 8 2.2 and 2.3 insolvency language; Doc 9 2.1 authorship warranties.

C. For the tax team

- Market-value CGT, gift, stamp duty (s79 needs 90%, NOESIS holds 85%; s101 asset by asset), de-grouping (s623) and the effect of any later round; model an IP-for-shares route with an independent valuation; confirm Entrepreneur Relief (stated EUR 1,000,000 in Doc 2; Revenue now states EUR 1,500,000), s597AA, KEEP (s128F), the s434(3A) election and the 20% surcharge on the retained 70%, VAT registration for NOESIS and Zubelsala, Part 35A and the Scenario B EUR 1.00 conversion.
- R&D and KDB: one set of sections across Docs 8, 9, 10 (769I, 769L, 766C, 766D and others differ), the outsourcing limit for a connected subsidiary, and the nexus uplift formula.
- Confirm the cited provisions flagged in the notes (s615 against s616 and s617, s128, s130(3)) and check "Commission Regulation (EU) 2026/877" in Doc 8, which Cuan could not verify.

D. Execution housekeeping (document owners)

- Pull the company registers and settle the existing share position; separate dated s193 resolutions for each company (Velocity included) before Step 3, with Docs 7, 8, 9 only confirming them.
- Name a Company Secretary and the s43 countersignatory for each company; a non-party witness for each deed; one title for each signatory across the suite; add dates, times and addresses at the head of every deed.
- A repository register for the Sandbox test; define "Assigned IP" in Doc 7; an asset-family schedule for Doc 9; signed assignments and waivers for contractors and non-employee directors.
- Check cross-references: s238 timing, Document 2 against Documents 5 to 10, Article 4 against Article 11(a) for "Class A Director".